

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403818	SANCHEZ vs SMITH	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

This is a personal injury lawsuit. On July 10, 2022, around midnight, Plaintiff Phillip Sanchez was walking on a sidewalk (the Premises) when Defendant Dwight Anthony Smith (or “Smith”), within the course and scope of his employment as a security guard with Big Will’s Security Services, Inc. (“Big Will’s”), intentionally accelerated his car directly into the right side of Plaintiff’s body. Smith dragged Plaintiff beneath the car and propelled Plaintiff into the pavement where he landed on his head (the “Incident”). After Smith assaulted Plaintiff, Smith gave a false statement to police causing Plaintiff to be arrested and confined for four days.

The original Complaint was filed on July 1, 2024. The court previously heard and sustained NCRC’s demurrer to the original Complaint. (5/14/26 Minute Order.) The court sustained the demurrer to all causes of action because the allegations against NCRC were generic and boilerplate. NCRC was not originally named in the Complaint. The claims at issue were brought against “Doe 1” and although Plaintiff later amended the Complaint to add NCRC as a Doe defendant, Plaintiff failed to add any specific factual allegations concerning NCRC’s involvement in Plaintiff’s injuries. Leave to amend was granted.

The operative First Amended Complaint (FAC), filed June 16, 2026, asserts causes of action for (1) Negligence - Motor Vehicle; (2) Negligence; (3) Negligent Hiring, Training, Retention, and Supervision; (4) Negligent Infliction of Emotional Distress (“NIED”); (5) Intentional Infliction of Emotional Distress (“IIED”); (6) Battery; and (7) Premises Liability. The FAC also seeks punitive damages. The original Complaint did not include claims for negligent hiring, training, retention, and supervision or premises liability.

The court recently heard and denied a motion to strike the request for punitive damages from the FAC brought by Defendant Dwight Smith. (9/9/26 Minute Order.)

Now, Defendant NCRC brings a demurrer and motion to strike the FAC. NCRC demurs to the first through seventh causes of action arguing the FAC does not allege sufficient facts to state these claims. Defendant also seeks to strike alter ego and joint venture allegations from the FAC, as well as Plaintiff’s request for punitive damages.

Plaintiff opposes the motions and argues the changes made to the FAC satisfy the court’s issues with the original Complaint. Plaintiff argues any remaining issues can be resolved via amendment.

Analysis

I. Meet and Confer

CCP §430.41 and §435.5 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The motion indicates the parties met and conferred via telephone. (Notice of Motion, fn. 1.) The motion states there is a “concurrently filed Declaration” attesting to the parties’ meet and confer conversations. (Ibid.) However, there is no declaration in eCourt.

Without a proper meet and confer declaration, the court could continue the hearing and require counsel to properly meet and confer.

II. Standard on Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 67.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

III. Requests for Judicial Notice

Defendant NCRC asks the court to take judicial notice of the following:

1. 5/14/26 Order from this court on NCRC’s previous demurrer – GRANT
2. Plaintiff’s Complaint filed on 7/1/24 – GRANT
3. Plaintiff’s Amendment to Complaint filed on 1/9/26 – GRANT
4. Plaintiff’s Verified Responses to Form Interrogatories propounded by Dwight Smith – GRANT (*Del E. Webb v. Structural Materials Co.* (1981)

123 Cal.App.3d 593, 604-605 (“The court will take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court”).)

5. Plaintiff’s deposition testimony – GRANT (*Del E. Webb v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605 (the court can take judicial notice of inconsistent statements contained in Plaintiff’s deposition).)

Plaintiff asks the court to take judicial notice of the original Complaint, the amendment to the Complaint substituting NCRC for Doe 1, and the court’s May 14, 2026, minute order sustaining NCRC’s demurrer with leave to amend. GRANT.

IV. Statute of Limitations (3rd COA)

NCRC argues the third and seventh claims are time-barred because they were not included in the original Complaint and are being alleged for the first time beyond the applicable statute of limitations.

The original Complaint was filed on July 1, 2024, and included a claim for negligent hiring, training, retention, and supervision. However, the claim was only alleged against Defendant Big Will’s Security Services, Inc. It was not alleged against any Doe defendants. On January 9, 2026, Plaintiff amended the Complaint to name NCRC as Doe 1. Then, the FAC was filed on June 16, 2026, and Plaintiff added NCRC as a defendant to the third cause of action for negligent hiring. Since this claim was not originally alleged against a Doe defendant, NCRC argues Plaintiff cannot rely on CCP §474¹ to relate the filing back to the original Complaint.

If the applicable statute of limitations has run at the time of the amendment, the “relation back doctrine” may determine whether the statute of limitations is a valid defense. For an amended complaint to relate back to the original complaint as to parties named in it by their true names, it must be based on the “same general set of facts” as the original; and seek recovery against the same defendants for the “same injuries; and refer to the “same incident.” (*Barrington v. A.H. Robins Co.* (1985) 39 Cal.3d 146, 150; *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 408-409.) For an amendment to relate back with respect to later-named Doe defendant, the original complaint must name “doe” defendants in the caption and the charging allegations must state a valid claim against the fictitiously-named defendants. The original Complaint named Does 1-10 in the caption and stated, “Defendants Does 1-10, inclusive, and each of them, were somehow negligent or otherwise responsible for the injuries and the Plaintiff and the damages alleged herein.” (Original Complaint ¶18.) The third cause of action listed only Big Will’s as the Defendant but the allegations include: “Defendants, and each of them,

¹ “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly...” (CCP §474.)

owed a duty to Plaintiff, to exercise reasonable care in hiring and supervising its persons, agents and employees.” (§24.) For the relation back doctrine to apply to a later-named Doe defendant, the complaint must allege that they were responsible for the acts complained of. (*Winding Creek v. McGlashan* (1996) 44 Cal.App.4th 933, 941.) An allegation that “defendants and each of them” were negligent supports relation back. (*Marasco v. Wadsworth* (1978) 21 Cal.3d 82, 87.) Even though the caption under the third cause of action only listed Big Will’s as a defendant, the substantive allegations in the original Complaint and third cause of action make clear Plaintiff was asserting the claim against all “Defendants, and each of them.” Thus, the relation back doctrine applies for NCRC as a later-named Doe Defendant.

V. Statute of Limitations (7th COA)

The original Complaint did not include a claim for premises liability against any defendant. Plaintiff added this claim after the court granted leave to amend when the initial demurrer was sustained. Plaintiff asserts he added this claim in direct response to the court’s ruling on the initial demurrer which found there were no specific allegations against NCRC that explained NCRC’s alleged liability to Plaintiff. Amendments alleging a new theory of liability against the defendant relate back to the original complaint, so long as it is based on the same set of facts previously alleged. (*Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 157, 1199-1200.) The facts alleged in the seventh cause of action are the same as those alleged in the original Complaint. As a result, the relation back doctrine applies and there is no statute of limitations issue for this claim.

VI. Scope of Amendment (3rd & 7th COA)

NCRC also argues the court did not authorize this additional amendment when it sustained the prior demurrer and granted leave to amend.

NCRC argues the addition of the third and seventh causes of action against NCRC impermissibly exceeds the scope of the court’s leave to amend. Generally, when a court grants leave to amend after sustaining a demurrer, the scope of permissible amendment is limited to the cause(s) of action to which the demurrer had been sustained. (*People v. Clausen* (1967) 248 Cal.App.2d 770, 785-786.) Normally, leave to amend does not allow the pleader to add a new cause of action unless “the new cause of action directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) Plaintiff may not amend the complaint and add a new cause of action without first having obtained permission to do so. (*Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023.)

NCRC argues the court did not expressly permit Plaintiff to add new causes of action. The third and seventh were not alleged in the original Complaint. In Opposition, Plaintiff argues the third and seventh causes of action do not allege a new or different injury-producing event but rather organizes the allegations that NCRC’s ownership/management of the property and its security operation created or increased the risk that culminated in the attack on Plaintiff. (Opp. p.7.)

The court finds the leave to amend granted by the court in ruling on the previous demurrer included Plaintiff's right to add new claims against NCRC. The previous leave to amend granted by the court encompassed the third and seventh causes of action against NCRC as those claims are based on the same facts pleaded in the original Complaint.

VII. Negligent Hiring (3rd COA)

NCRC also argues this claim is insufficiently alleged because the FAC fails to plead facts showing NCRC knew or should have known specific facts making Big Will's or Smith unfit before the incident, fails to plead how NCRC's alleged contractor-selection process fell below a legal standard, and fails to plead nonconclusory causation between contractor vetting and Smith's later intentional vehicle assault.

An employer can be held liable for the negligent hiring, supervision or retaining of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal. App. 4th 1038.) Negligent hiring/supervision/retention/training of an employee is based on direct liability for negligence, not vicarious liability. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.)

The FAC alleges NCRC selected and retained Big Will's as its security provider, retained authority to approve or require replacement of security personnel and to establish or enforce operational rules, and that it knew or should have known of deficiencies and warning signs concerning the security operation. The FAC alleges NCRC breached its duty by not adequately investigating Big Will's licensing and compliance with California security industry regulations and Big Will's screening, vetting, and training procedures for security officers. Plaintiff alleges NCRC breached its duty by not investigating and verifying Big Will's history of complaints, misconduct, or civil or criminal liability. (FAC ¶64.) Plaintiff alleges NCRC breached its duty by negligently retaining Big Will's after they knew or should have known of Big Will's failure to properly screen, train, supervise, and discipline its employees. (¶68.) Plaintiff further alleges NCRC breached its duty by failing to adequately supervise the security operations at the property by failing to implement protocols governing the scope of authority of security personnel, failing to conduct regular oversight of Big Will's security, and failing to respond appropriately to complaints or red flags concerning Smith's conduct. (¶69.) Plaintiff alleges NCRC's failure to adhere to its duty caused his harm. (¶76.)

The allegations in the FAC are sufficient to withstand demurrer. Plaintiff has alleged facts and, although many of those facts are general in nature, they are sufficient to allege this claim against NCRC. Overrule.

VIII. Premises Liability (7th COA)

To maintain a cause of action for negligence, the plaintiff must show: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) Premises liability is a form of negligence in which a property owner is under a duty to

exercise ordinary care in the management of the premises in order to avoid exposing person to an unreasonable risk of harm. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal. App. 3d 1611, 1619.) “The applicable general principle is that the owner of the property, insofar as an invitee is concerned, is not an insurer of safety but must use reasonable care to keep his premises in a reasonably safe condition and give warning of latent or concealed peril. He is not liable for injury to an invitee resulting from a danger which was obvious or should have been observed in the exercise of reasonable care.” (*Edwards v. Cal. Sports* (2008) 206 Cal. App. 3d 1284, 1288.)

Defendant argues the FAC fails to allege NCRC owned, leased, occupied, or controlled the subject property, was negligent in the property use, and that the claimed negligence was a substantial factor in causing Plaintiff’s harm. The FAC alleges the “events giving rise to the subject incident...were initiated on and/or arose from activities on the subject premises owned and/or controlled by NCRC and CDRA.” (¶108.) Plaintiff alleges Plaintiff suffered injuries as a direct and proximate result of NCRC’s breach of its duties. (¶109.) This is sufficient to withstand demurrer. Plaintiff has alleged ownership and control of the property and that said negligence was a substantial factor in causing his harm. Overrule.

IX. Negligence & Motor Vehicle Negligence (1st COA) & Negligence (2nd COA)

“To prevail in an action for negligence, the plaintiff must demonstrate that the defendant owed a duty to the plaintiff, that the defendant breached that duty, and that the breach proximately caused the plaintiff’s injuries.” (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1188.)

NCRC argues this claim is not properly alleged against it because the FAC alleges Smith was employed by Big Will’s. NCRC argues any claims based on the allegations that NCRC negligently hired and oversaw a security contractor are properly brought as a negligent hiring or premises-security claim rather than a motor vehicle negligence claim.

The FAC alleges NCRC “owed Plaintiff a duty of care to ensure that security vehicles operated at and around the subject premises were operated safely, that the security personnel operating those vehicles were competent and trained to do so, and that security activities at the subject premises did not create an unreasonable risk of harm to pedestrians, including Plaintiff, at the subject location.” (¶38.) The FAC alleges NCRC breached its duty of care by retaining Big Will’s and Smith to provide security services “without adequate investigation into their qualifications, backgrounds, and fitness; by failing to ensure Smith was properly licensed, trained, and competent to operate a vehicle in the course of security patrol duties; by failing to establish and enforce safety protocols governing the use of vehicles by security personnel at the subject premises; and by authorizing and/or permitting Smith to use a vehicle in connection with security services at the subject premises without adequate supervision or oversight.” (¶41.)

In addition to the motor vehicle negligence cause of action, the FAC also alleges a standard negligence claim against NCRC. The FAC alleges NCRC owed Plaintiff and members of the public lawfully at or near the property a duty of reasonable care arising from their ownership, operations, management and control of the property and from their retention of Big Will's and Smith to provide security services thereat. (¶49.) The FAC alleges the duty included the "obligation to exercise reasonable care in selecting, hiring, contracting with, overseeing, and retaining a security services contractor, and to ensure that security personnel stationed at the subject premises were fit, properly trained, and qualified to perform their duties without endangering others." (¶49.)

It is unclear how the two negligence claims alleged against NCRC are different from one another. Plaintiff alleges the same duty and failure to abide by that duty for both causes of action. Since the claims are duplicative, the court sustains the demurrer to the first cause of action.

With respect to the sufficiency of the allegations in the second cause of action for negligence, Defendant argues the FAC only alleges it owed Plaintiff a duty in a conclusory manner.

The FAC alleges NCRC negligently operated the security program at the property and negligently selected, retained, trained, and supervised the security provider. It is unclear how these allegations are different from the allegations in the third cause of action for negligent hiring, training, retention, and supervision. Paragraph 49 of the FAC alleges NCRC owed Plaintiff a duty to "exercise reasonable care in selecting, hiring, contracting with, overseeing, and retaining a security services contractor, and to ensure that security personnel stationed at the subject premises were fit, properly trained, and qualified to perform their duties without endangering others." This is nearly identical to the allegations in paragraph 63 of the FAC. Given the duplicative nature of these claims, the court sustains the demurrer to the second cause of action.

X. NIED (4th COA)

NIED is a form of negligence. (*Burgess v. Superior Court* (1992) 2 Cal. 4th 1064, 1071.) The elements of NIED are: (1) legal duty to use due care; (2) breach of such duty; (3) damages and injury; (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Store* (1993) 6 Cal. 4th 124, 129.) Direct victim NIED cases involve damages for serious emotional distress that results from the breach of a duty owed to the plaintiff that is assumed by the defendant or imposed as a matter of law. (*Burgess v. Superior Court* (1992) 2 Cal. 4th 1064, 1073.) Serious emotional distress exists if an ordinary, reasonable person would be unable to cope with it. (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 668, fn 12.)

NCRC argues this claim is simply negligence applied to emotional distress damages. Given the ruling to sustain the demurrer to the first and second causes of action based on negligence, it is also appropriate to sustain the demurrer to this claim that is derivative of the negligence claims.

XI. IIED & Battery (5th & 6th COA)

The elements of an IIED cause of action are: (1) outrageous conduct by defendant; (2) the defendant's intention of causing or reckless disregard for the possibility of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal. App. 3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal. App. 4th 736, 745.)

A battery involves an intentional unlawful, harmful or offensive unconsented touching. (*Rains v. Superior Court* (1984) 150 Cal. App. 3d 933, 938.)

Defendant argues the FAC lacks facts identifying any NCRC officer, director, managing agent, authorized decisionmaker, pre-incident knowledge, or post-incident ratifying conduct to impose intentional tort liability on NCRC as a corporation.

"[A]n employer is vicariously liable for the torts of its employees committed within the scope of the employment." (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296 (Lisa M.)) An employer's vicarious liability may extend to an employee's willful and malicious tort, "even though the employer has not authorized the employee to commit crimes or intentional torts." (*Id.* at 297.) An employer is vicariously liable for injuries caused an employee's tortious act committed within the scope of his or her employment if the employee's conduct falls within one of two prongs: (1) the act performed was either required or incident to the employee's duties, or (2) the employee's misconduct is one which could be reasonably foreseeable by the employer, or a "foreseeable consequence of the enterprise". (*Halliburton Energy Services, Inc. v. Department of Transportation* (2013) 220 Cal.App.4th 87, 94 (*Halliburton*); *Perry v. County of Fresno* (2013) 215 Cal.App.4th 94, 102.) In this context, "foreseeability" means "an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among the other costs of the employer's business." (*Halliburton, supra*, 220 Cal.App.4th at 95.)

Where an employee commits a tortious act while performing his or her ordinary duties for the employer at the employer's place of business, the employer is liable for that tortious act, "even if wholly unauthorized and without benefit to the employer." (*Ibid.*) A minor deviation from the employee's duties will not excuse employer from liability. (*Ibid.*) However, a deviation so material or substantial, amounting to an entire departure from those duties, will take the employee's conduct out of scope of employment. (*Ibid.*) For instance, if the employee (1) "inflicts an injury out of personal malice, not engendered by the employment"; or (2) "acts out of personal malice unconnected with the employment"; or (3) "if the misconduct is not an 'outgrowth' of the employment," the employee's conduct will not give rise to a cause of action under the doctrine of respondeat superior. (*Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1005.)

The issue of whether an employee acted within the scope of his or her employment is a question of fact. (*Perez v. Van Groningen & Sons, Inc.* (1986) 41 Cal.3d 962, 968.)

The FAC alleges NCRC is liable for Smith's intentional tortious conduct under the principles of respondeat superior and/or agency. (§87.) The FAC alleges Smith's violent attack on Plaintiff "arose directly out of and was engendered by his duties as a security guard at the subject premises, which duties Smith was performing on behalf of and for the benefit of NCRC and CDRA at the time of the subject incident." (§87.) Plaintiff alleges NCRC ratified Smith's tortious conduct by "taking no remedial action, imposing no discipline, and making no efforts to prevent recurrence after becoming aware of the subject incident and Smith's violent attack upon himself." (§89.) Plaintiff alleges NCRC is vicariously liable for Smith's battery because he was acting as a security guard pursuant to NCRC's contract with Big Will's, Smith's confrontation arose directly from his duties as a security guard, Smith was exercising the authority granted to him by NCRC, and the risk of a security guard using force against a member of the public is a risk that is inherent in security guard employment. (§96.)

NCRC argues Smith was not its employee. Rather, Smith was Big Will's employee and NCRC had contracted with Big Will's to perform security services. To establish respondeat superior and vicarious liability, Plaintiff must first show the tortfeasor was actually employed by Defendant. The threshold issue is often whether the tortfeasor was an employee or an independent contractor. Subject to a few policy exceptions, hirers cannot be held vicariously liable for the wrongdoing of their independent contractors. (*Johnson v. Ralphs Grocery Co.* (2012) 204 Cal.App.4th 1097, 1107.) Great emphasis is placed on whether the hirer had a right to control the detailed manner and means by which work was to be performed. "A worker is an independent contractor when he or she follows the employer's desires only in the result of the work, and not the means by which it is achieved." (*Blackwell v. Vasilas* (2016) 244 Cal.App.4th 160, 168.) Whether a person is an employee or an independent contractor is ordinarily a question of fact; but if from all the facts only one inference may be drawn, it is a question of law. (*Angelotti v. Walt Disney Co.* (2011) 192 Cal.App.4th 1394, 1404.)

The FAC alleges Smith "was an employee and/or agent of Big Will's at the time of the subject incident." (§5.) The FAC alleges NCRC entered into a contract with Big Will's under which Big Will's agreed to provide security services at the property, including patrolling the property, monitoring access, controlling or dispersing individuals at the premises, and using security vehicles and personnel to enforce rules. (§9.) The FAC alleges Smith was "assigned by Big Will's as the security officer/guard responsible for providing on-site security services at the subject premises on the date of the subject incident." (§10.) Plaintiff alleges "[a]t all times relevant to the subject incident, Smith was acting within the scope of his duties as a security guard assigned to the subject premises by Big Will's, for the benefit of and under the authority granted by NCRC and CDRA." (§10.) Plaintiff alleges NCRC "had the right and obligation to direct, oversee, approve, and/or control the manner in which security services were provided at the subject premises; to approve the security personnel assigned to the subject premises; to establish and/or enforce rules, policies, and protocols governing security operations

at the subject premises, and to terminate or replace security personnel or security contractors who engaged in misconduct, posed a danger to residents or the public, or failed to perform their duties in a safe and professional manner.” (§11.) The court must take factual allegations as true. Given the factual allegations in the FAC that NCRC had control over Smith and the ability to hire/fire him, whether Smith was NCRC’s employee for purposes of respondeat superior and vicarious liability is a question of fact that cannot be determined at this time. For this reason, the claims survive demurrer.

Overrule.

XII. Motion to Strike

The court may, upon a motion made pursuant to Code of Civil Procedure section 435, or at any time in its discretion, and upon terms it deems proper strike out any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) As with a demurrer, on a motion to strike, “the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Internat. Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.) A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

As to the issue of punitive damages, Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294, subd. (a).) “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “When the plaintiff alleges an intentional wrong, a prayer for exemplary damages may be supported by pleading that the wrong was committed willfully or with a design to injure.” (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) When the wrong is unintentional, however, a “conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brosseau v. Jarrett* (1977) Cal.App.3d 864, 872.)

Ordinary negligence (mere carelessness or simple failure to exercise due care for plaintiff’s safety) does not amount to malice, oppression or fraud and thus does not support a punitive damages award. Nor, for that matter, may a finding of malice necessarily rest on grossly negligent or even reckless conduct. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894; see also *Lee v. Bank of America* (1990) 218 Cal.App.3d 914, 920.) Rather, in cases involving conduct performed without intent to harm, a finding of “malice” for punitive purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amount to “despicable conduct” and that such despicable conduct was carried on with a “willful and conscious disregard” of the rights or safety of others. (Civil Code §§ 3294, subd. (c)(1); *Mock v. Michigan Millers Mut. Ins. Co.* (1992) 4 Cal.App.4th 306, 330-331.)

Civil Code section 3294 sets forth explicit requirements for punitive damage awards against employers (principals) for acts of their employees (agents). Plaintiff must allege and prove one of the following: the employer had advance knowledge of the employee's unfitness and employed him or her with a conscious disregard of the rights or safety of others; or the employer authorized or ratified the employee's oppressive, malicious or fraudulent conduct; or the employer was personally guilty of "oppression, fraud or malice." (Civil Code § 3294(b).)

The FAC alleges NCRC had actual knowledge of Smith's dangerousness and/or Big Will's inadequate training and supervision but still retained Big Will's and authorized Smith's continued presence at the property and ratified the violent conduct after the incident. (FAC ¶¶34.) The FAC alleges NCRC knowingly continued the challenged security arrangement despite Smith's alleged dangerousness and, once NCRC became aware of the attack, failed to investigate, repudiate, or take adverse action in response. (FAC ¶¶ 88-89, 100.) However, the FAC does not include any allegations that any corporate officers, directors or managing agents had advanced knowledge or authorized or ratified Smith's actions. The Opposition essentially concedes as much, saying the FAC references officers, directors, managers, and managing agents in its agency and ratification allegations. (FAC ¶¶11, 13, 29, 75.) The allegations are conclusory and do not allege NCRC's officers, directors, or managing agents had any advance knowledge of the unfitness of Big Will's employees generally, let alone Smith specifically.

Grant the motion with leave to amend.

XIII. Ruling

Grant Defendant's and Plaintiff's requests for judicial notice.

Overrule the demurrer as to the third, fifth, sixth, and seventh causes of action.

Sustain the demurrer to the first and second causes of action as they are duplicative of the third cause of action.

Sustain the demurrer to the fourth cause of action.
20 days leave to amend is appropriate.

Grant the motion to strike with 20 days leave to amend.

2.

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See above